

STATE OF NEW YORK

9853--A

IN SENATE

April 8, 2026

Introduced by Sen. BAILEY -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to the supervision of athletic trainers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivision 2 of section 8351 of the education law, as
2 amended by chapter 733 of the laws of 2023, is amended to read as
3 follows:
4 2. Supervision of an athletic trainer by a physician shall be contin-
5 uous but shall not be construed as requiring the physical presence of
6 the supervising physician at the time and place where such services are
7 performed, provided however, that such supervision shall include a
8 signed written agreement or protocol created collaboratively between the
9 supervising physician and licensed athletic trainer. The written agree-
10 ment or protocol shall address and describe the nature and scope of
11 athletic training services to be performed by such licensed athletic
12 trainer, in accordance with this title. Such written agreement or proto-
13 col shall be reviewed at least once a year by the supervising physician
14 and athletic trainer and revised if necessary. No physician shall super-
15 vise more than [~~four~~] six athletic trainers, except that such limitation
16 shall not apply for athletic trainers practicing in secondary schools,
17 and institutions of postsecondary education, who are practicing under
18 the supervision of a physician who serves as the medical director for
19 such school or institution.
20 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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